

**El Paso County
Delia Briones
County Clerk**

Instrument Number: 00000000078

L.Mendez

Recorded On: 6/10/2026 12:24:00 PM

Number of Pages: 1

NF Pages: 1

*****THIS PAGE IS PART OF THE INSTRUMENT*****

Any provision herein which restricts the Sale, Rental or use of the described REAL PROPERTY because of color or race is invalid and unenforceable under federal law.

File Information

Document Number 00000000078

Receipt Number 1996360

Fees \$36.00



State of Texas
COUNTY OF EL PASO

I hereby certify that this instrument was FILED in the File Number sequence on the date/time printed hereon, and was duly RECORDED in the Official Record of El Paso County, Texas.

Delia Briones
County Clerk
El Paso County, TX

A handwritten signature in cursive script that reads "Delia Briones".

NOTICE OF FORECLOSURE

Notice is hereby given of a public nonjudicial foreclosure sale.

1. **Property to Be Sold.** The property to be sold is described as follows:

Tracts 9-A-2 and Tract 9-D-1-B, A.F. MILLER SURVEY NO. 211, in the City of El Paso, El Paso County, Texas, according to a resurvey of such A.F. MILLER SURVEY NO. 211, made for tax purposes, being more particularly described by metes and bounds in Exhibit "A", attached hereto and made a part hereof for all purposes intended.

2. **Date, Time, and Place of Sale.** The sale is scheduled to be held at the following date, time, and place:

Date: July 7, 2026

Time: The sale shall begin no earlier than 10:00 A.M. or no later than three hours thereafter. The sale shall be completed by no later than 1:00 P.M.

Place: El Paso County Coliseum in El Paso, Texas, at the following location: 4100 East Paisano Drive, El Paso, Texas 79905.

Notice of the date of any rescheduled foreclosure sale will be reposted and re-filed in accordance with the posting and filing requirements of the Texas Property Code. Such reposting or re-filing may be after the date originally scheduled for this sale.

3. **Terms of Sale.** The sale will be conducted as a public auction to the highest bidder for cash, subject to the provisions of the Deed of Trust permitting the beneficiary thereunder to have the bid credited to the note up to the amount of the unpaid debt secured by the deed of trust at the time of sale.

Those desiring to purchase the property will need to demonstrate their ability to pay cash on the day the property is sold.

The sale will be made expressly subject to any title matters set forth in the deed of trust, but prospective bidders are reminded that by law the sale will necessarily be made subject to all prior matters of record affecting the property, if any, to the extent that they remain in force and effect and have not been subordinated to the deed of trust. Prospective bidders are strongly urged to examine the applicable property records to determine the nature and extent of such matters, if any.

4. **Type of Sale.** The sale is a nonjudicial deed of trust lien foreclosure sale being conducted pursuant to the power of sale granted by the deed of trust executed by Albert Flores and Betty Flores. The deed of trust is dated April 18, 2024, and on file under document number 20240032853.

5. Obligations Secured. The deed of trust provides that it secures the payment of the indebtedness and obligations therein described (collectively, the "Obligations") including but not limited to (1) the promissory note in the original principal amount of \$97,000.00, executed by Albert Flores and Betty Flores, and payable to the order of BMTD, LLC, a Texas limited liability company; (2) all renewals and extensions of the note; and (3) any and all present and future indebtedness of Albert Flores and Betty Flores, to BMTD, LLC. BMTD, LLC is the current owner and holder of the Obligations and is the beneficiary under the deed of trust.

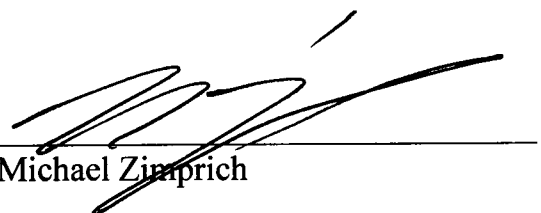
Questions concerning the sale may be directed to the undersigned:

The Law Offices of Michael J. Zimprich
7001 Westwind Drive, Suite 205
El Paso, Texas 79912
Attention: Michael Zimprich
Telephone: (915) 201-4944

6. Default and Request to Act. Default has occurred under the deed of trust, and the beneficiary has requested that the Trustee, Michael J. Zimprich, and/or Beverly Mitrison, 7001 Westwind Drive, El Paso, Texas 79912 conduct this sale. Notice is given that before the sale the beneficiary may appoint another person substitute trustee to conduct the sale.

Assert and protect your rights as a member of the armed forces of the United States. If you are or your spouse is serving on active military duty, including active military duty as a member of the Texas National Guard or the National Guard of another state or as a member of a reserve component of the armed forces of the United States, please send written notice of the active duty military service to the sender of this notice immediately.

EXECUTED this 4th day of June 2026.



Michael Zimprich

109 - GF200073

METES AND BOUNDS DESCRIPTION

The parcel of land herein described is all of Tracts 9A and 9B, A. F. Miller Survey No. 211, El Paso, El Paso County, Texas, and is more particularly described by metes and bounds as follows:

Commencing at a city monument lying at the centerline intersection of Mariposa Drive and El Puente Street; Thence South $00^{\circ} 02' 03''$ West, along the centerline of El Puente Street, a distance of 130.89 feet; Thence, North $89^{\circ} 57' 57''$ West, a distance of 30.00 feet to a point lying on the westerly right-of-way line of El Puente Street; Thence, 9.91 feet along said right-of-way line and along the arc of a curve to the left, having a radius of 874.04 feet, a central angle of $00^{\circ} 38' 59''$ and a chord which bears South $00^{\circ} 17' 28''$ East, a distance of 9.91 feet to the TRUE POINT OF BEGINNING of this description;

THENCE, 188.88 feet continuing along said right-of-way line and along the arc of a curve to the left, having a radius of 874.04 feet, a central angle of $12^{\circ} 22' 53''$ and a chord which bears South $08^{\circ} 48' 22''$ East, a distance of 188.81 feet;

THENCE, 201.87 feet continuing along said right-of-way line and along the arc of a curve to the right, having a radius of 1011.28 feet, a central angle of $05^{\circ} 03' 06''$ and a chord which bears South $09^{\circ} 58' 16''$ East, a distance of 201.78 feet;

THENCE, 31.23 feet along the arc of a curve to the right, having a radius of 30.00 feet, a central angle of $89^{\circ} 27' 17''$ and a chord which bears South $37^{\circ} 48' 56''$ West, a distance of 28.15 feet to a point lying on the northerly right-of-way line of Cloudview Drive;

THENCE, 120.15 feet along said right-of-way line and along the arc of a curve to the left, having a radius of 3367.89 feet, a central angle of $01^{\circ} 44' 06''$ and a chord which bears South $81^{\circ} 38' 31''$ West, a distance of 120.14 feet;

THENCE, South $80^{\circ} 46' 28''$ West, continuing along said right-of-way line, a distance of 28.92 feet to a point lying on the common boundary line between Tracts 9D1 and 10K, A. F. Miller Survey No. 211;

THENCE, North $00^{\circ} 00' 00''$ West, along the easterly boundary line of Tract 10K, a distance of 446.70 feet to a point lying on the common boundary line between tracts 9A and 9B, A. F. Miller Survey No. 211;

THENCE, 107.18 feet along said boundary line and along the arc of a curve to the left, having a radius of 330.81 feet, a central angle of $11^{\circ} 04' 58''$ and a chord which bears South $80^{\circ} 54' 58''$ East, a distance of 108.14 feet to the TRUE POINT OF BEGINNING of this description.

Said parcel of land contains 1.287 acres (56,040 sq. ft.) of land more or less.

FLORES & ASSOCIATES
Professional Land Surveyors

Robert R. Soipal
Registered Professional Land Surveyor
Texas License No. 4178

POOR QUALITY COPY
BEST AVAILABLE FILM

Exhibit A

EXHIBIT A

POOR QUALITY ORIGINAL